

25TRCV02100 25TRCV02100

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25TRCV02100 Hearing Date: September 1, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

cresencio cruz de la cruz

;

Plaintiff,

vs.

FORD MOTOR COMPANY

, et al.;

Defendants.

Case

No.:

25TRCV02100

Hearing

Date:

September

1, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF CRESENCIO CRUZ DE LA CRUZ'S MOTION

TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORIES FROM DEFENDANT FORD
MOTOR COMPANY

(2)

PLAINTIFF CRESENCIO CRUZ DE LA CRUZ'S MOTION

TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION SET ONE FROM DEFENDANT
FORD MOTOR COMPANY

(1)

PLAINTIFF CRESENCIO CRUZ DE LA CRUZ'S REQUESTS

FOR MONETARY SANCTIONS

MOVING PARTY: Plaintiff,

Cresencio Cruz De La Cruz

RESPONDING

PARTY: Defendant,

Ford Motor Company

(1)

Plaintiff

Cresencio Cruz De La Cruz's Motion to Compel Further Response to Special
Interrogatories from Defendant Ford Motor Company is DENIED pursuant to Code of
Civil Procedure section 2030.300, subdivision (b)(1).

(1)

Plaintiff

Cresencio Cruz De La Cruz's Motion to Compel Further Responses to Request for Production Set One from Defendant Ford Motor Company is DENIED pursuant to Code of Civil Procedure section 2031.310, subdivision (b)(2).

(2)

Plaintiff

Cresencio Cruz De La Cruz's Requests for Monetary Sanctions are DENIED pursuant to Code of Civil Procedure sections 2030.300, subdivision (b)(1), and 2031.310, subdivision (b)(2).

The Court considers the moving papers filed on June 11, 2026, the opposition brief filed on August 18, 2026, and the reply brief and the notice of non-opposition filed on August 25, 2026.

BACKGROUND

Factual Background

On June 25, 2025, plaintiff Cresencio Cruz De La Cruz ("Plaintiff") filed the Complaint against defendants Ford Motor Company ("FMC"), Fox Hills Auto, Inc. dba Airport Marina Ford, and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of the Song-Beverly Act – Breach of Express Warranty; (2) Violation of the Song-Beverly Act – Breach of Implied Warranty; and (3) Negligent Repair.

On January 22, 2026, Plaintiff served FMC with Special Interrogatories, Set One, and Requests for Production, Set One.

(Declaration of Nitin Sapra re: SROG ("SROG Sapra Decl."), ¶ 3, Exh. A;

Declaration of Nitin Sapra re: RPD ("RPD Sapra Decl."), ¶ 3, Exh. A.) FMC provided responses to these requests on February

23, 2026. (SROG Sapra Decl., ¶ 4, Exh.

B; RPD Sapra Decl., ¶ 4, Exh. B.) Subsequently,

on March 26, 2026, FMC served verifications.

(SROG Sapra Decl., ¶ 4; RPD Sapra Decl., ¶ 4.)

On April 8, 2026, Plaintiff issued a meet-and-confer letter to FMC,

outlining the alleged deficiencies in FMC's responses. (SROG Sapra Decl., ¶ 5, Exh. C1; RPD Sapra Decl.,

¶ 5, Exh. C.) Plaintiff requested that

FMC respond by April 22, 2026, and sought an extension to file any necessary motions to compel by May 6, 2026. (SROG

Sapra Decl., ¶ 5, Exh. C1; RPD Sapra Decl., ¶ 5, Exh. C.)

On April 9, 2026, FMC agreed to the requested extension. (SROG Sapra Decl., ¶ 5, Exh. D1; RPD Sapra Decl., ¶ 5, Exh. D.) Subsequently, on April 22, 2026, FMC provided its response to the meet-and-confer letter, indicating that it would stand by the majority of its responses. (SROG Sapra Decl., ¶ 5, Exh. C2.)

On May 5, 2026, Plaintiff issued another meet-and-confer letter to FMC. (SROG Sapra Decl., ¶ 5, Exh. C3.) Plaintiff requested that FMC respond by May 19, 2026, and sought an extension to file any necessary motions to compel by May 29, 2026. (SROG Sapra Decl., ¶ 5, Exh. C3.)

On May 5, 2026, FMC agreed to the requested extension. (SROG Sapra Decl., ¶ 5, Exh. D2; RPD Sapra Decl., ¶ 5, Exh. D.) Subsequently, on May 19, 2026, FMC provided its response to the meet-and-confer letter, indicating that it would stand by the majority of its responses. (SROG Sapra Decl., ¶ 5, Exh. C4; RPD Sapra Decl., ¶ 5, Exh. E.)

On May 28, 2026, Plaintiff issued another meet-and-confer letter to FMC. (SROG Sapra Decl., ¶ 6, Exh. E; RPD Sapra Decl., ¶ 6, Exh. F.) Plaintiff requested that FMC respond by June 5, 2026, and sought an extension to file any necessary motions to compel by June 11, 2026. (SROG Sapra Decl., ¶ 6, Exh. E; RPD Sapra Decl., ¶ 6, Exh. F.)

On May 28, 2026, FMC agreed to the requested extension. (SROG Sapra Decl., ¶ 6, Exh. F; RPD Sapra Decl., ¶ 6, Exh. G.) However, FMC did not respond to the meet-and-confer letter or supplement its responses. (SROG Sapra Decl., ¶ 6; RPD Sapra Decl., ¶ 6.)

Procedural Background

On June 11, 2026, Plaintiff filed these motions. On August 18, 2026, FMC filed an opposition brief to the motion concerning special interrogatories. On August 25, 2026, Plaintiff filed a reply brief and a notice of non-opposition concerning the request for production.

LEGAL STANDARD

Code of Civil Procedure

section 2030.300 provides that “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if

the propounding party deems that” the responses contain: (1) answers that are evasive or incomplete; (2) an unwarranted or insufficiently specific exercise of an option to produce documents in lieu of a substantive response; or (3) unmerited or overly generalized objections.

(Code Civ. Proc., §2030.300, subd. (a).) “[N]otice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” (Code Civ. Proc., §2030.300, subd. (c).) Moreover, “[a] motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §2030.300, subd. (b)(1).)

Additionally, “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc., § 2017.010.) For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §2030.300, subd. (d).)

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmeritorious or overly generalized objections. (Code Civ. Proc., § 2031.310, subd. (a).) Moreover, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc.,

§ 2031.310, subd. (b)(2).)

A motion to compel further production must set forth specific facts

showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).)

“To establish good cause, a discovery

proponent must identify a disputed fact that is of consequence in the action

and explain how the discovery sought will tend in reason to prove or disprove

that fact or lead to other evidence that will tend to prove or disprove the

fact.” (Digital Music News LLC v

Superior Court (2014) 226 Cal.App.4th 216, 224 (“Digital Music News LLC”).) If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify

the objections. (Kirkland v. Superior

Court (2002) 95 Cal. App.4th 92, 98.)

“[T]he court shall impose a monetary sanction under Chapter 7

(commencing with Section 2023.010) against any party, person, or attorney who

unsuccessfully makes or opposes a motion to compel further response to a

demand, unless it finds that the one subject to the sanction acted with

substantial justification or that other circumstances make the imposition of

the sanction unjust.” (Code Civ. Proc.,

§ 2031.310, subd. (h).)

Under Code of Civil Procedure

section 2023.030, subdivision (a), “The court may impose a monetary sanction

ordering that one engaging in the misuse of the discovery process, or any

attorney advising that conduct, or both pay the reasonable expenses, including

attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one

unsuccessfully asserting that another has engaged in the misuse of the

discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any

provision of this title, the court shall impose that sanction unless it finds

that the one subject to the sanction acted with substantial justification or

that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd.

(a).)

“The court may award sanctions under the Discovery Act in favor of a

party who files a motion to compel discovery, even though no opposition to the

motion was filed, or opposition to the motion was withdrawn, or the requested

discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

MEET AND CONFER REQUIREMENT

Plaintiff was required to meet and confer with FMC before filing these motions. (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion [to compel] shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.) “ ‘The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On April 8, 2026, Plaintiff issued a meet-and-confer letter to FMC, outlining the alleged deficiencies in FMC’s responses. (SROG Sapra Decl., ¶ 5, Exh. C1; RPD Sapra Decl., ¶ 5, Exh. C.) Plaintiff requested that FMC respond by April 22, 2026, and sought an extension to file any necessary motions to compel by May 6, 2026. (SROG Sapra Decl., ¶ 5, Exh. C1; RPD Sapra Decl., ¶ 5, Exh. C.)

On April 9, 2026, FMC agreed to the requested extension. (SROG Sapra Decl., ¶ 5, Exh. D1; RPD Sapra Decl., ¶ 5, Exh. D.) Subsequently, on April 22, 2026, FMC provided its response to the meet-and-confer letter, indicating that it would stand by the majority of its responses. (SROG Sapra Decl., ¶ 5, Exh. C2.)

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the requested extension. (SROG Sapra Decl., ¶ 5, Exh. D2; RPD Sapra Decl., ¶ 5, Exh. D.) Subsequently, on May 19, 2026, FMC provided its response to the meet-and-confer letter, indicating that it would stand by the majority of its responses. (SROG Sapra Decl., ¶ 5, Exh. C4; RPD Sapra Decl., ¶ 5, Exh. E.)

On May 28, 2026, Plaintiff issued another meet-and-confer letter to FMC. (SROG Sapra Decl., ¶ 6, Exh. E; RPD Sapra Decl., ¶ 6, Exh. F.) Plaintiff requested that FMC respond by June 5, 2026, and sought an extension to file any necessary motions to compel by June 11, 2026. (SROG Sapra Decl., ¶ 6, Exh. E; RPD Sapra Decl., ¶ 6, Exh. F.)

On May 28, 2026, FMC agreed to the requested extension. (SROG Sapra Decl., ¶ 6, Exh. F; RPD Sapra Decl., ¶ 6, Exh. G.) However, FMC did not respond to the meet-and-confer letter or supplement its responses. (SROG Sapra Decl., ¶ 6; RPD Sapra Decl., ¶ 6.)

The Court finds that Plaintiff did not adequately meet and confer in accordance with Code of Civil Procedure section 2016.040. Plaintiff's counsel failed to make an effort to meet in person, by telephone, or via video conference to discuss the issues at hand. Instead, Plaintiff's counsel sent three meet-and-confer letters. (SROG Sapra Decl., Exhs. C1, C3, E; RPD Sapra Decl., Exhs. C, F.) Consequently, the Court does not consider this a sufficient attempt to meet and confer prior to bringing these motions.

Accordingly, the Court DENIES Plaintiff's motions to compel further responses and the accompanying requests for sanctions.

ORDERS

1) Plaintiff
Cresencio Cruz De La Cruz's Motion to Compel Further Response to Special Interrogatories from Defendant Ford Motor Company is DENIED.

2) Plaintiff
Cresencio Cruz De La Cruz's Motion to Compel Further Responses to Request for Production Set One from Defendant Ford Motor Company is DENIED.

3) Plaintiff

Cresencio Cruz De La Cruz's Requests for Monetary Sanction are DENIED.

4) Plaintiff

is ordered to give notice of this Court's ruling.

IT

IS SO ORDERED.

DATED: September 1, 2026

Tamara

Hall

Judge

of the Superior Court